

Eviction Covid laws broken

(B) If the tenant files a signed declaration of COVID-19-related financial distress with the court pursuant to this subdivision, the court shall dismiss the case, pursuant to paragraph (2), if the court finds, after a noticed hearing on the matter, that the tenant's failure to return a declaration of COVID-19-related financial distress within the time required by subdivision (g) was the result of mistake, inadvertence, surprise, or excusable neglect, as those terms have been interpreted under subdivision

2020 California Code

Code of Civil Procedure - CCP

PART 2 - OF CIVIL ACTIONS

TITLE 10 - ACTIONS IN PARTICULAR CASES

CHAPTER 11 - Actions to Recover COVID-19 Rental Debt

Section 871.10.

Universal Citation: CA Civ Pro Code § 871.10 (2020)
871.10.

(a) In any action seeking recovery of COVID-19 rental debt, as defined in Section 1179.02, the plaintiff shall, in addition to any other requirements provided by law, attach to the complaint documentation showing that the plaintiff has made a good faith effort to investigate whether governmental rental assistance is available to the tenant, seek governmental rental assistance for the tenant, or cooperate with the tenant's efforts to obtain rental assistance from any governmental entity, or other third party pursuant to paragraph (3) of subdivision (a) of Section 1947.3 of the Civil Code.

The damages awarded for wrongful eviction include (1) the lost rental value of the unit, (2) moving costs and statutory relocation fees, and (3) emotional distress. Under the California Rent Ordinance, the damages are tripled. The lost rental value is calculated as the fair market monthly rental value of the lost unit less the actual rent paid by the tenant when evicted times the number of years the tenant expected to stay in the unit. (upholding an award of three times, twenty years of projected lost rental value).

For example, where a tenant would have remained in a unit for another ten years and was paying \$1,000 below market rate, the value of the lost unit is \$120,000. This is then tripled to \$360,000. Attorney fees and costs are also recoverable. The lost rental value, moving costs and statutory relocation fees are automatically tripled. Emotional distress damages are tripled where a landlord acted in knowing or reckless disregard of the eviction protections under the Covid

Rental Relief ordinance. For Example, if the landlord claims that the tenant has “run out of time” to correct any paperwork submitted to receive the rental relief or if the landlord has demanded the full unpaid rent payment without assisting the tenant in pursuing Covid Rental Relief, then the landlord will not be able to evict the tenant.

An eviction that occurs under the circumstances listed above will result in the maximum fines and penalties against the landlord, and the maximum settlements available will be awarded to the tenant.

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Emails between myself and the property managers (landlord) showing the following;

1. They did not try to assist me in continuing my Covid Rental Relief.
2. They harassed and threatened to evict me using false allegations that the paperwork was no longer acceptable, when it was still acceptable.
3. Refusing to assist me in good faith to use the available and legal alternative solutions to submit the Covid Rental Relief documents that the property managers claimed was missing or incorrect.
4. Refusing to accept any of the other legally available funds for Covid Rental Relief, for example; allowing me to stay until I have been approved for the rental relief programs available at the time that would pay my rent and back rent paid.
5. Illegally Proceeding with the eviction under a false narrative that I abandoned the Rental Relief program.
6. Getting paid my rental relief money and then evicting me for non payment and collecting double, fraud Against myself the govt sherrifs fed etc

All evidence of the above crimes and automatic dismissals of an eviction according to the law is provided below.

Below are the emails between myself and the property managers leading up to and on the day my illegal eviction began.

Please be aware this crime began when the property manager came to my home without notice of a grievance beforehand regarding the 2 months of rental relief I already submitted to their office. The manager abruptly ran up the stairs leading to my porch and front door, I didn't recognize him with a mask on, I heard the first steps he pounded on coming up the porch stairs, and jumped to the second landing to stop the person I heard from running into my home with my son and my disabled friend inside, once I stopped him he got very angry and began to harass me out loud in front of all my neighbors that I'm being evicted and waving random documents in my face that appeared to be my Covid Rental Relief documents.



me Apr 23, 2021



to Carissa ▾

You're welcome. I haven't received anything else either. As of right now I'm trying to understand how your office came to the conclusion that a surprise eviction, bc half of the documents that were sent to your office we're lost. And why was I not informed of anything? Why was I informed the way I was informed? I feel like I'm missing something and I haven't received anything yet and I don't see how I could possibly have put myself in a position where I instantly unexpectedly don't know if I have a home or I'm evicted or how long before someone else just randomly decides to come by and tell me in front of my family and all the neighbors, I'm evicted. Two inches from my face. In this pandemic? Did he really come up with that whole thing on his own? Really?

You don't have to answer this email. I thought you did fine and I like it here. Not sure what to make of this or should I literally think someone will come and try to remove me from my home, without notice, guess I have no idea until someone gets back to me. I'll keep you posted.
Thanks



Victor Nunez Apr 24, 2021



to Atlas, Brian, me ▾

Hello Anthony,

Attached is the 15 Day notice that was served back in March. One copy was delivered to your front door step and a second one was mailed to your address. The time to sign and submit the declaration page has expired. You mentioned to me that you had the money to catch up and pay. If you would like to pay and stay you can still do so.



SB-212 MAR 15
Day Sept to Jun...



PDF

On Sat, Apr 24, 2021 at 3:09 PM Atlas Cabinets <atlasoccustomcabinets@gmail.com> wrote:

Ok, well when are you planning on sending over the documents? None of these emails have the documents for the payoff or the eviction. You told me and the neighborhood I'm in the surprise eviction process on my porch, so yes please send over the docs to payoff my rent, please.

Anthony

TO Carissa Doyle
Carissa.Doyle@sheaapartments.com

Date Apr 23, 2021, 10:50 AM

Good Morning Carissa,

I wanted to just touch base and let you know that my assistant is sending me over copies of the signed paperwork that your office said I didn't submit. also is sending receipts of the delivery of those documents and showing that you have them for every month except April bc that one was never sent. I briefly mentioned my assistant in the past was helping me stay on top of things and I didn't realize this was all sent over by them bc in april during spring break I usually work from home the whole month, do my spring cleaning and enjoy my sons time off with him. So I've been here at home working remotely everyday this

Month. Anyway, no worries and this should be cleared up ASAP. I appreciate

You and you have been nothing but am amazing Since day one, and clearly this is none of your fault. And I will make sure that it stays that way.

Also my assistant will be sending along the docs, all communications with your office and my security footage from in and out of my home since I moved in so this can be properly handled and I can get back to focusing on getting through the muck of this covid without anymore distractions or surprises or anyone trying to literally run into my home and stand within inches of my face in this pandemic bc they are upset they didn't get whatever it is they were expecting in their own mind. Especially while my disabled cousin and young son were here with me.

Thank you again!

And let me know if there is anything else I can do.



me Apr 23, 2021

to Carissa ▾



My assistant has sent over to your office what I instructed and if you could please just let me know you have received my emails and the office received what my assistant is sending that would be greatly appreciated.

Thank you again Carissa,

Anthony



Carissa Doyle Apr 23, 2021

to me ▾



Hi Anthony,

Thanks for your email! I did receive your other email regarding the declaration notices as well. Will your assistant be sending over documentation to my email? I just want to make sure I'm keeping an eye out for it. Once received, I will pass this over to management and they will contact you directly regarding this matter to see what happens next.



On Fri, Apr 23, 2021 at 4:05 PM Victor Nunez
<Victor.Nunez@sheaapartments.com> wrote:

Hello Anthony,

I'm just following up on our conversation from yesterday. At this moment the options are to give up possession of the apartment OR to pay and stop eviction. Your current balance for rent due is \$5,588.00 and legal fees are currently at \$200.00. The total of \$5,788.00 must be paid to stop further eviction proceedings. Payment must be made in the form of a cashier's check or money order (legal fees are schedule to increase by Monday 4/26/2021). Please contact me if you have any questions.

Woodbridge

Victor Nunez

Assistant Community Manager

O: 949-551-6800 | F: 949-551-8308

From: A. DiMarcello
<amd949609@gmail.com>
Sent: Monday, March 15, 2021 11:29 AM
To: Carissa Doyle
<Carissa.Doyle@sheaapartments.com>
Subject: Re: Hi Carissa

Perfect thank you I'll drop off the money order today and I need a separate one for the conserve trash and water bill too correct?

On Fri, Mar 12, 2021 at 9:10 AM Carissa Doyle
<Carissa.Doyle@sheaapartments.com> wrote:

Hi Anthony,

If you do have an owing balance of any kind,
you will receive those notices monthly until
the balance is paid in full. You can then also
drop off the money order as well. 😊 That's
good to hear!

Thank you,

Woodbridge

Carissa Doyle

Leasing Specialist

O: 949-551-6800 | F: 949-551-8308

[50 Eastshore | Irvine, CA 92604](#)

From: A. DiMarcello
<amd949609@gmail.com>
Sent: Friday, March 12, 2021 7:34 AM
To: Carissa Doyle
<Carissa.Doyle@sheaapartments.com>
Subject: Re: Hi Carissa

Thanks! You too! So am I supposed to wait for another letter every month for the covid assistance or do I just drop off a money order again this month for 500? I'm almost caught up again. Thank you

Anthony